

## 25NWCV03211 25NWCV03211

County: los-angeles

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Case Number: 25NWCV03211 Hearing Date: September 17, 2026 Dept: L

ALVARO PEREZ SERRATO, et al. vs CITY OF WHITTIER

CASE NO.: 25NWCV03211

HEARING: September 17, 2026 @ 9:30 a.m.

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### TENTATIVE ORDER

Plaintiffs Alvaro Perez Serrato, Cirenia

Peralta, and Richardo Perez's Petition for Relief from Government Claim Filing Requirements is DENIED.

Plaintiffs to give notice.

### Background

This is a negligence action. On September 9, 2025, Plaintiffs Alvaro Perez Serrato, Cirenia Peralta, and Richardo Perez ("Plaintiffs") filed this action against Defendant City of Whittier and Does 1 to 100. The gravamen of the Complaint is that, on October 9, 2024, Norwalk Transit Bus #7 negligently collided with Plaintiffs' vehicle, causing injuries. The Complaint alleges one cause of action for Negligence.

On November 24, 2025, Defendant City of Norwalk was named as Doe 1.

On March 20, 2026, Plaintiffs dismissed  
Defendant City of Whittier from the action with prejudice.

On April 14, 2026, the Court sustained  
Defendant City of Norwalk's Demurrer to the Complaint without leave to amend. (4/14/26  
Minute Order.)

Plaintiffs now petition for relief from  
government claim filing requirements pursuant to Government Code section 946.6.

The Court notes that the hearing on the  
Petition was continued from August 13, 2026 to today's date. (8/13/26 Minute  
Order.)

#### Legal Standard

Government Code section 911.2 provides that  
"[a] claim relating to a cause of action for death or for injury to person or  
to personal property. . .shall be presented. . .not later than six months after  
the accrual of the cause of action." (Govt. Code, § 911.2, subd. (a).)

If a claimant fails to file a claim within 6  
months, the claimant can apply to the public entity for leave to present a late  
claim. (Gov't. Code, § 911.4, subd. (a).) The application for leave to  
present a late claim must be submitted "within a reasonable time not to exceed  
one year after the accrual of the cause of action and shall state the reason  
for the delay in presenting the claim." (Gov't. Code, § 911.4, subd. (b).)

"If an application for leave to present a  
claim is denied or deemed to be denied pursuant to Section 911.6, a petition  
may be made to the court for an order relieving the petitioner from Section  
945.4. The proper court for filing the petition is a superior court that would  
be a proper court for the trial of an action on the cause of action to which  
the claim relates. If the petition is filed in a court which is not a proper  
court for the determination of the matter, the court, on motion of any party,  
shall transfer the proceeding to a proper court." (Gov't. Code, § 946.6, subd.  
(a).)

A petition for relief to file a late claim  
must indicate: (1) that the application was made to the board under Government

Code section 911.4 and was denied or deemed denied; (2) the reason for failure to present the claim within the time limit specified in Section 911.2; and (3) the information required by Section 910. (Gov't. Code, § 946.6, subd. (b)(1)-(3).) Further, "[t]he petition shall be filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6." (Gov't. Code, § 946.6, subd. (b).)¿¿

Government Code section 946.6, subdivision

(c) states that "[t]he court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable: [listing certain qualifying conditions, one of which must be met]."

## Discussion

Plaintiffs now petition for relief from government filing requirements on grounds that their failure to present the claim was due to mistake, inadvertence, surprise, or excusable neglect under Government Code section 946.6, subdivision (c)(1) ["The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4."].)

Specifically, prior to the filing of this action on November 12, 2024, Plaintiffs filed a government claim with the City of Whittier based on their collision with a bus while travelling in Whittier. (Irvin Decl., ¶¶ 2-3, 5.) On March 23, 2025, City of Whittier denied the claim, although no reason was given for the denial. (Irvin Decl., ¶ 4.) On October 2, 2025, Plaintiffs received the Declaration of Kyle Cason, through which they learned that the subject bus was owned by the City of Norwalk. (Irvin Decl., ¶ 8.)

On October 30, 2025, Plaintiffs applied for leave to present a late claim with the City of Norwalk pursuant to under¿Government Code section 911.4 ("Application to Submit Late Claim"). (Irvin Decl., ¶ 6, Exh. A.) On November 4, 2025, Plaintiffs received notice from the City of Norwalk that the Application to Submit Late Claim was rejected. (Irvin Decl., ¶ 7, Exh. B.) Plaintiffs timely filed this Petition.

Plaintiffs further argues that the City of Norwalk will not be prejudiced if relief is granted. Plaintiffs thus argue that they should be relieved of the government claim filing requirements.

In opposition, Defendant City of Norwalk (hereinafter, "City") argues that Plaintiffs improperly attempt to circumvent to the governmental claim filing requirements and that their petition for relief should be denied. The incident occurred on October 9, 2024. Plaintiffs failed to present a government claim to the City within 6 months pursuant to Government Code section 911.2. Further, Plaintiffs failed to apply for leave to present a late claim within one year of accrual of their claim pursuant to Government Code section 911.4, subdivision (b)—specifically, the deadline to apply was October 9, 2025 and Plaintiffs submitted their application on October 30, 2025. Thus, the Petition should be denied on procedural grounds.

Further, Plaintiffs cannot establish mistake, inadvertence, surprise, or excusable neglect under Government Code section 946, subdivision (c)(1). Plaintiffs' own evidence establishes that their "mistake" in identifying the correct public entity was in actuality due to "an unverified assumption." (Opp., 5:17.) Further, Plaintiffs made no attempt to investigate the reason for the City of Whittier's denial from March 25, 2025, the date of the denial, to October 2, 2025, the date it received the Declaration of Kyle Cason. The City argues that Plaintiffs' lack of diligence cannot constitute excusable neglect as a matter of law.

Lastly, the City would be prejudiced if relief is granted. Plaintiffs' non-compliance has resulted in unreasonable delay, which has prejudiced the City's ability to conduct discovery. The City has incurred costs to litigate this case, including for bringing its Demurrer that was sustained without leave to amend.

In reply, Plaintiffs reiterate their arguments. Further, Plaintiffs assert that a "factual question remains as to whether the City of Whittier communicated with or forwarded [Plaintiffs'] claim to the City of Norwalk after receiving it" and request "the opportunity to conduct limited discovery" regarding this issue before the Court rules on this Petition. (Repl., 5:11-17.)

The Court denies Plaintiffs' Petition on two grounds. Firstly, the Court finds that Plaintiffs failed to submit a timely

application for leave to present a late claim to the City of Norwalk within one year of claim accrual pursuant to Government Code section 911.4, subdivision (b). Such condition is required for a petition for relief. (See Gov't. Code, § 946.6, subd. (c) ["[t]he court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 [...]"], emphasis added.) As noted by the City, Plaintiffs did not submit such application until October 30, 2025, over one year since the incident occurred on October 9, 2024. (See Irvin Decl., ¶ 3, Exh. A.)

Secondly, the Court previously sustained the City's Demurrer to the Complaint without leave to amend on grounds that Plaintiffs were required to allege that they complied with the Government Claims Act—including the requirement of petitioning for and receiving relief from government claim filing requirements—prior to filing this action. The Court held the following:

"The Court finds that compliance with Government Code section 945.4, or alternatively, Government Code section 946.6, are prerequisites to filing an action against a public entity. Government Code section 946.6 requires a petition for relief be filed in a separate civil proceeding. (See Haning et al., Cal. Practice Guide: Personal Injury (The Rutter Group, September 2025 Update), ¶ 5:62.1, citing Gov't. Code, § 946.6, subd. (a), ["The proper court for filing the petition is a superior court that would be a proper court for the trial of an action on the cause of action to which the claim relates."] and Luers v. Smith (C.D. Cal. 1996) 941 F.Supp. 105, 107 ["Section 946.6 contemplates a petition for relief in a separate civil proceeding, not a motion in an action which has already been filed in either state or federal court."].)

Further, only after the court grants a petition for relief under Government Code section 946.6 has been granted may the petitioner commence an action against the public entity. (See Gov't. Code, § 946.6, subd. (f) ["If the court makes an order relieving the petitioner from Section 945.4, suit on the cause of action to which the claim relates shall be filed with the court within 30 days thereafter."], emphasis added; see also Los Angeles City Sch. Dist. v. Superior Court (1970) 9 Cal.App.3d 459, 468 ["[Section 946.6] permits the claimant who was improperly refused consideration of his grievance to bypass

the claim procedure altogether. He is thus relieved from the provisions of section 945.4 and may commence his lawsuit against the entity immediately.”].)

Here, Plaintiffs

were required file their Petition for Relief and receive appropriate relief prior to filing this action. Plaintiffs now attempt to bypass the proper procedures by filing their Petition for Relief in the instant action. The Court thus finds that a stay pending hearing on the Petition would be inappropriate.

The Court finds

that Plaintiffs cannot allege compliance with the claims presentation requirements. As it stands now, Plaintiff[s] [have] failed to comply with Government Code section 945.4 and no relief has been granted pursuant to Government Code section 946.6. The action is thus barred against the City.

Accordingly, the

Demurrer to the Complaint is SUSTAINED without leave to amend.”

(4/14/26 Minute Order.)

The Court agrees that the City would be prejudiced if the Petition was granted in light of the Court's prior ruling.

The Court respectfully declines Plaintiffs' request to allow limited discovery to be conducted.

Based on the foregoing, Plaintiffs' Petition for Relief from Government Claim Filing Requirements is denied.